

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

RUBY LIU,

Petitioner

VS.

LEANDRO COIMBRA RODRIGUES,

Respondent

) Case Number: FDI-24-800682

) Hearing Date: July 2, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: MOTION TO COMPEL PETITIONER'S FINANCIAL DISCLOSURE AND
REQUEST FOR SANCTIONS

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner Ruby Liu and Leandro Coimbra Rodrigues. They married on 6/27/22 and they agree they separated on 12/16/25, for a marriage of 2 years and 6 months. They have no minor children in common.
- 2) After hearing on 11/20/25, the Court issued an order for \$395 in temporary monthly spousal support payable by Respondent and awarded Petitioner \$2,500 in attorney's fees (See Findings and Order After Hearing (FOAH) filed 12/11/25).
- 3) At the prior 4/30/26 hearing, the Court issued the following orders (See FOAH filed 6/3/26):
 - a. As a preliminary issue, Petitioner's request for the Court to order Respondent to notice Petitioner of any change in employment status is GRANTED as the Court issued an Earnings Assignment Order on 12/31/25.
 - b. Respondent shall notice Petitioner of any change in employment status within 7 days.

- 1 c. Petitioner's request for bifurcated trial on termination of marital status and validity of the
2 Prenuptial Agreement is GRANTED.
- 3 d. The matter is set for a long-cause hearing on 8/18/26 and 8/19/26 at 1:45 PM in Dept.
4 403.
- 5 e. The Status Conference on 6/26/26 is hereby vacated.
- 6 4) On 5/8/26, Petitioner filed a Request for Order seeking terminating sanctions due to abuse of
7 discovery, litigation misconduct, and failure to follow court orders. Petitioner asserts Respondent
8 has ignored demands for production and interrogatories. Petitioner alleges that Respondent is
9 intentionally underemployed and owes \$1,300 in arrears. Petitioner further asserts that
10 Respondent is weaponizing litigation to halt discovery. Petitioner lists 14 specific requests of the
11 Court on page 8 and 9 of her Request for Order. The matter was set for hearing on 6/30/26.
- 12 5) On 5/18/26, Respondent filed a Responsive Declaration in opposition to Petitioner's Request for
13 Order filed 5/8/26. Respondent asserts that he has made good faith efforts to comply with
14 discovery requests, and while he admits to some late or incomplete responses, such responses
15 were unintentional and because he is self-represented. Respondent further asserts that the
16 Petitioner's discovery requests are excessive and burdensome. Respondent alleges Petitioner has
17 not served a complete Preliminary Declaration of Disclosure (PDD).
- 18 6) On 5/18/26, Respondent filed a Motion to Compel Petitioner's financial disclosures. Respondent
19 asserts that he has provided Petitioner with his financial information, but she has not reciprocated,
20 and that her lack of disclosure has been prejudicial to him. Respondent requests monetary
21 sanctions against Petitioner for her failure to comply with disclosure requirements. The matter
22 was set for hearing on 7/2/26.
- 23 7) On 6/3/26, Petitioner filed a Responsive Declaration to Respondent's Request for Order filed
24 5/18/26. Petitioner alleges that Respondent's Request for Order is defective due to lack of
25 service; however, she agrees to the matter being heard for the sake of judicial economy.
- 26 8) On 6/3/26, Petitioner filed a Motion to Compel, which is on calendar in Dept. 405A on 9/4/26.
- 27 9) On 6/30/26, the Court continued the 6/30/26 hearing to 7/2/26 to adjudicate Petitioner's Request
28 for Order filed 5/8/26 and Respondent's Request for Order filed 5/18/26 on the same date.
- 29 10) The Court notes the following additional pleadings:

- a. Petitioner filed a Declaration Regarding Service of Declaration of Disclosure on 2/26/25 stating that Petitioner's Preliminary Declaration of Disclosure was served on the other party by mail on 1/13/25 (which Petitioner amended in a PDD file dated 4/18/25).
- b. Respondent filed an Income and Expense Declaration on 7/18/25.
- c. Petitioner attached an Income and Expense Declaration and copy of the parties' PNA to her 9/3/25 Request for Order.
- d. Respondent filed a Declaration Regarding Service of Declaration of Disclosure on 2/25/26 stating that Petitioner's Preliminary Declaration of Disclosure was served on the other party by mail but does not specify a date.

B. Findings and Order

- 1) **The parties are ordered to appear.**